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CASE #	CASE NAME	HEARING NAME
CVRI2203422	JUAREZ vs SAN BERNARDINO CITY UNIFIED SCHOOL DISTRICT	MOTION TO CONTINUE ON 2ND AMENDED COMPLAINT

Tentative Ruling:

Defendant San Bernardino City Unified School District's ("Defendant" or "District") Motion to Continue is denied.

This action was initiated nearly four years ago when Plaintiffs filed their Complaint for Damages on August 16, 2022. Following extensive law and motion practice, including a demurrer that was sustained by this Court and subsequently reversed and remanded on appeal, Defendant filed its response to the pleading on April 4, 2025. On February 26, 2026, this Court held a trial-setting conference. All parties were present, and they mutually agreed to a firm trial date of October 9, 2026.

Prior to the trial-setting conference, on February 9, 2026, Defendant served Notices of Taking Deposition of each of the four Plaintiffs, scheduling the depositions for March 11, 12, and 13, 2026. On March 4, 2026, Plaintiffs' counsel, Eduardo Olivo, Esq., filed formal objections to the deposition notices on the grounds that the dates had been unilaterally selected and represented that he would meet and confer to provide alternative dates. Defendant's counsel followed up in writing on April 3 and April 9, 2026, requesting the rescheduled dates.

On April 9, 2026, Plaintiffs' counsel's office responded that Mr. Olivo was preparing for a federal trial and would not be available until the end of May 2026. This federal trial preparation and trial engagement spanned from approximately early April 2026 through the end of May 2026. On May 20, 2026, the parties executed and filed a Joint Stipulation to Continue Trial and Trial-Related Dates, requesting a continuance of the trial to April 2, 2027, on the grounds that Plaintiffs' counsel's unavailability had disrupted discovery. On June 17, 2026, this Court denied the parties' ex parte application and the joint stipulation, noting that trial dates are firm and a stipulation that good cause exists does not constitute good cause.

Following the Court's June 17, 2026 denial, Defendant's counsel sent written requests for deposition dates on June 17 and July 2, 2026. Receiving no response, Defendant unilaterally served deposition notices on July 11, 2026, setting the depositions of all four Plaintiffs for August 10, 11, and 12, 2026. Defendant filed the instant noticed Motion to Continue Trial on July 17, 2026.

To ensure the prompt and orderly disposition of civil cases, the dates assigned for trial are firm, and all parties and counsel must regard the trial date as certain under California Rules of Court, Rule 3.1332(a). Continuances of trials are highly disfavored in California, as articulated in California Rules of Court, Rule 3.1332(c) and affirmed by the Court of Appeal in *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 468.

This policy is mandated by the Trial Court Delay Reduction Act, which directs judges to commence trials on the scheduled date and to maintain a "firm, consistent policy against continuances, to the maximum extent possible and reasonable." (California Government Code Section 68607(f), (g).)

Accordingly, a trial court may grant a continuance only upon an affirmative showing of good cause requiring the delay, as set forth in California Rules of Court, Rule 3.1332(c). While the rule lists circumstances that may indicate good cause—such as the excused inability to obtain essential testimony despite diligent efforts under Rule 3.1332(c)(6)—each request must be considered on its own merits. Under California Rules of Court, Rule 3.1332(d), the Court must evaluate all relevant facts and circumstances, including the proximity of the trial date, any previous delay, the length of the requested continuance, the availability of alternative means, and the overall diligence of the parties.

Defendant's Claimed Excuse Consists of a Brief Fraction of the Case History and Fails to Demonstrate Diligence

Defendant's primary argument for good cause is that the federal trial engagement of Plaintiffs' counsel from early April 2026 to the end of May 2026 made it impossible to conduct the depositions of the four Plaintiffs. The Court finds this argument entirely unpersuasive. This litigation was initiated on August 16, 2022, and has been active for more than four years. The two-month period during which Plaintiffs' counsel was unavailable represents a minor fraction—only two months out of the entire forty-eight-month life of this case. To claim that a temporary, two-month scheduling conflict of opposing counsel during the spring of 2026 completely derailed Defendant's ability to prepare for an October 2026 trial date is an admission of a lack of overall diligence.

The purpose of the firm trial date policy is that parties must be proactive in managing their litigation timelines. Under California Rules of Court, Rule 3.1332(b), a party must seek a continuance as soon as reasonably practical once the necessity is discovered, and the court must strictly evaluate diligence. In *Zlotoff v. Tucker* (1984) 154 Cal.App.3d 988, 993-994, the court properly denied a continuance where the moving party failed to act with promptness and diligence upon learning of witness issues. Here, Defendant waited years to obtain the essential depositions. Even after the trial date was set on February 26, 2026, Defendant failed to secure alternative deposition dates in March, prior to the onset of Plaintiffs' counsel's federal conflict, or immediately upon his return in June. Diligent counsel does not allow a brief, two-month unavailability of opposing counsel to paralyze discovery in a mature, four-year-old case. The Court finds that Defendant's failure to complete depositions prior to the fall of 2026 is a product of its own lack of diligence throughout the life of this action.

Defendant further claims that the current trial date of October 9, 2026, and the corresponding fact discovery cutoff of September 9, 2026, under Code of Civil Procedure Section 204.020(a), make it "materially impossible" to prepare for trial. However, the record refutes this assertion. On July 11, 2026, Defendant unilaterally served Notices of Taking Deposition of all four Plaintiffs, scheduling them for August 10, 11, and 12, 2026. These scheduled depositions are set nearly two full months before

the trial date of October 9, 2026, and a full month before the close of fact discovery on September 9, 2026.

The Court finds that the active, diligent exercise of professionalism and cooperation by counsel can easily accomplish these four depositions and any necessary Independent Medical Examinations (IMEs) within the remaining period. There are nearly sixty days between the scheduled August depositions and the trial date, which is more than sufficient time to obtain transcripts, consult expert witnesses, and finalize trial preparations. Defendant's assertion that it is foreclosed from preparing its defense is overstated and does not stand up to scrutiny. If Defendant's counsel operates with the requisite diligence and professional urgency required by a firm trial setting, all necessary discovery can and will be completed on the current schedule. To grant a seven-month continuance under these circumstances would reward passive litigation and violate the Court's commitment to dispose of general civil matters within two years of filing, as recommended by Standards of Judicial Administration, Section 2.2(d). For the foregoing reasons, the Court finds that Defendant San Bernardino City Unified School District has failed to establish good cause or demonstrate that it acted with the necessary diligence to justify a trial continuance.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305126	I-10 LOGISTICS OWNER, LLC vs ALBUS & ASSOCIATES	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

Defendant and Cross-Complainant Albus & Associates ("Albus") for Leave to File a First Amended Cross-Complaint is denied.

Plaintiff I-10 Logistics commenced this action on September 28, 2023, by filing a Complaint against Albus asserting causes of action for professional negligence, negligence, breach of contract, and breach of express warranty arising from Albus's geotechnical services on the San Gorgonio Crossing/Cherry Valley project (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Case No. CVRI2305126*). Attached to and incorporated within Plaintiff's Complaint as Exhibit 1 was the written Services Agreement (the "Services Contract") executed by I-10 Logistics and Albus on or about April 8, 2021 (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Paragraph 7 and Exhibit 1*). Under Exhibit A - Conditions, Page 21 of the Services Contract, the contract contains an express limitation of liability provision limiting Albus's total aggregate liability to the greater of \$50,000.00 or Albus's total fee for services rendered on the project (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Services Agreement, Page 21; Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint, Seymour Decl., Exh. A*). The total contract sum paid to Albus exceeded \$1,000,000.00 (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Paragraph 8; Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section II.A*).